IN THE SUPREME COURT OF FLORIDA

CASE NO.: SC2025-0272

TRUSTEE CORPORATION OF THE KING STREET BAPTIST CHURST, INC.

Petitioner,

v.

NORTHWEST BAPTIST CHURCH OF COCOA INC.; BREVARD BAPTIST ASSOCIATION, INC.; and SURFSDIE COMMUNITY FELLOWSHIP, INC.

Respondents.

On Petition for Discretionary Review from the Fifth District Court of Appeal, L.T. Case No. 5D2025-0272

BRIEF OF PETITIONER ON JURISDICTION

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INTRODUCTION AND STATEMENT OF THE ISSUES

This dispute over church property has been litigated below, resulting in two disparate opinions from the Fifth District Court of Appeal.

The first opinion reversed a trial court dismissal for an alleged lack of standing, with Judge Cohen's concurring opinion explaining that, without applying neutral principles of law to a congressional form of governance, "the Appellant would have no forum in which to adjudicate its alleged grievances".

Trustee Corporation of King Street Baptist Church , Inc. v. Northwest Baptist Church of Cocoa, Inc., 357 So. 3d 733 (Fla. 5th DCA 2022) (hereinafter referenced as "King Baptist I"). The second opinion, however, entirely undid the first, reversing the trial court's judgment in favor of the church's trustees, in direct and express conflict with the opinions of not only sister courts, but this Court and the U.S. Supreme Court.

Respondents, Northwest Baptist Church of Cocoa, Inc., Brevard Baptist Association, Inc., and Surfside Community Fellowship, Inc., shall be referred to individually as "Northwest," "BBA," and "Surfside"

or collectively as "Respondents." Petitioner, Trustee Corporation of the King Street Baptist Church, Inc., shall be referred to as "Petitioner" or "Trustee."

Accordingly, this Opinion in Northwest Baptist Church of Cocoa, Inc., Brevard Baptist Association, Inc., and Surfside Community Fellowship, Inc. v. Trustee Corporation of the King Street Baptist Church, Inc., Case No.: 5D2025-0272 (July 31, 2026) ((hereinafter referred to as "Opinion" or "King

Baptist II") is raised to this Court on review pursuant to Rule 9.120(a)(2)(A)(iv), Florida Rules of Appellate Procedure, for determination of these issues:

I.

Whether the Fifth District's Opinion directly and expressly conflicts with decision of the First District, the Florida Supreme Court, and the United States Supreme Court on the same question of the application of the ecclesiastical abstention doctrine; and II.

Whether the Fifth District's Opinion directly and expressly conflicts with the decision of the Second District on the same issue of standing.

STATEMENT OF THE CASE AND FACTS

A. Facts related to the Church Property.

The Opinion does not contain all the facts that will be necessary for this Court's review on the merits, but it does provide sufficient factual detail to establish a basis for this Court's conflict jurisdiction.

(Opinion, pp. 2-5.) Those facts provide that the original transfer of property to King Street Baptist pursuant to a Trustee Deed contained a "reverter clause" which provided an express provision protecting the interests of even a minority of the membership. (Opinion, p. 2).

As noted by the court, that reverter clause was such that:

Failure of the membership of the church, even if a majority of the membership, to operate a church within these defined parameters "shall constitute such a deviation from the accepted usages, practices and beliefs of Baptists, that said majority shall no longer constitute the true congregation of said church . . . ." In such an occurrence, title to the subject property "shall

vest in, and be held for, the use and benefit of the minority" members who continue adherence to the Baptist faith as the deed's clause describes.

(Opinion, p. 2)

The Opinion also provided that the language of the clause was such that only if the entirety of the membership of King Street Baptist fails to operate a Baptist Church as required "the title to the above describe property shall revest and become vested in the Brevard Baptist Association, Inc." (Opinion, p. 3). Thus, in 2017, the issue arose at a business meeting of the Church, but where the trial court would later find that the Church bylaws regarding provision of notice and adherence to basic Robert's Rules of Order were not followed, rendering the determination of the lower court the subsequent quitclaim deeds to be void because the Northwest Baptist Church was never properly dissolved. (Opinion, pp. 4-5).

B.

Procedural History.

Petitioner filed suit against Respondents alleging standing based upon the language of the Trustee Deed. On January 3, 2022, the trial court dismissed Petitioner's case based upon application of the Ecclesiastical Abstention Doctrine. On appeal (King Baptist I), the Fifth District reversed the lower court's order, finding that the trial court's dismissal of Petitioner's Second Amended Complaint for lack of standing was improper. King Baptist I, 357 So. 3d 733 (Fla. 5th DCA 2022) (Opinion, p. 2, fn 1).

Following remand, on January 5, 2025, the trial court entered an Order Granting Summary Judgment in Favor of Plaintiff (Opinion, pp. 4-5), not only finding that Petitioner had standing at the inception of the lawsuit, and

that the assignments from the minority members also conferred standing upon the Petitioner. The trial court determined that Northwest failed to either provide sufficient notice or run its business meeting in accord with Roberts Rules of Order and that its determination did not implicate the Ecclesiastical Abstention Doctrine. (Opinion, pp. 4-5).

Respondents appealed the January 5, 2025 Order, again arguing Petitioner's lack of standing and application of the Ecclesiastical Abstention Doctrine.

Cocoa, Inc., Brevard Baptist Northwest Baptist Church of Association, Inc., and Surfside Community Fellowship, Inc. v. Trustee Corporation of the King Street Baptist Church, Inc., Case No.: 5D2025-0272 (July 31, 2026).

Contrary to the Fifth District's first appellate decision, the court now rejected Petitioner's lawsuit was dismissed for lack of standing and application of the Ecclesiastical Abstention Doctrine. (Opinion, pp.

1-11).

Following post-opinion motions being denied, Petitioner's request for this Court to accept jurisdiction timely followed.

ARGUMENT IN SUPPORT OF JURISDICTION

Pursuant to Rule 9.030(a)(2)(A)(iv), Florida Rules of Appellate Procedure, Petitioner seeks this Court's discretionary review of the Fifth District's opinion in King Baptist II. The Fifth District's Opinion expressly and directly conflicts with the opinions of other District Courts of Appeal and this Court on the same question of law. The Opinion was based upon legal principles of standing and application of the Ecclesiastical Abstention

Doctrine that are inconsistent with these other courts and applied its interpretations to not only reverse the January 5, 2025 Order but dismiss Petitioner's case outright.

With respect to the issue of the application of the Ecclesiastical Abstention Doctrine, the Opinion directly conflicts with Epperson v. Myers, 58 So. 2d 150 (Fla. 1952) which ruled that when there is a disruption in the orderly processes of the church the only recourse for those that seek to have their rights resolved is through the courts.

The Opinion is also in conflict with longstanding Supreme Court guidance, including Watson v. Jones, 80 U.S. 679 (1871) which stated that ordinary principles which govern voluntary organizations determine use of property and Jones v. Wolf, 443 U.S. 595 (1979)

which applied neutral principles of law to decide a church property dispute. Moreover, the Opinion also directly conflicts with Flynn v. Estevez, 221 So. 3d 1241 (Fla. 1st DCA 2017) which applied the standard that secular courts, must accept the decision rendered by the highest ecclesiastical authority.

With respect to the standing issue, the Opinion directly conflicts with Gen. Dev. Corp. v. Kirk, 251 So. 2d 284 (Fla. 2d DCA 1971) which provides that sufficient interest in the outcome of litigation was sufficient for standing. This Court made clear in Ford Motor Co. v. Kikis, 401 So. 2d 1341 (Fla. 1981), that "the legal principles which the court applies supplies a sufficient basis for petition for conflict review. It is not necessary that a district court explicitly identify conflicting district court or supreme court decisions in its opinion in order to create an 'express' conflict under [section (a)(2)(A)(iv)]."

Kikis, 401 So. 2d at 1342. This jurisdictional path for review has recently been cited to by the Federal Eleventh Circuit in relation to a case before it, explaining in that "Because the First DCA issued a written opinion expressly addressing a question of law that could hypothetically create conflict, the Florida Supreme Court had discretionary jurisdiction to review the case." Jones v. Sec'y, Florida Dep't of Corr., No. 24-14178, 2026 WL 2124355, at *5 (11th Cir. July 23, 2026).

Accordingly, the case law remains consistently interpreted: this court has jurisdiction to review decisions of intermediary appellate courts that expressly address questions of law in a manner inconsistent with this Court or sister district courts of appeal.

I.

THE FIFTH DISTRICT'S OPINION DIRECTLY CONFLICTS WITH DECISIONS OF THE FIRST DISTRICT COURT OF APPEAL, THE FLORIDA SUPREME COURT, AND THE UNITED STATES SUPREME COURT ON THE APPLICATION OF THE

ECCLESIASTICAL ABSTENTION DOCTRINE.

The Florida Supreme Court rendered a clear opinion regarding the availability of court redress for a dispute involving property of a church, specifically the Baptist Church. Epperson v. Myers, 58 So. 2d 150 (Fla. 1952). The opinion in that case not only set the rule of law in Florida but simultaneously encapsulates the Petitioner's position and the ruling of the trial court:

The Baptist Church is congregational in government and conducts its proceedings by well-established rules of church order. Its discipline is

not only democratic, it is one of the oldest democratic institutions in this country….There is no theory under which the affairs of the Baptist Church can be administered by a 'rump faction' in the manner found to have been done in this case. It must be accomplished by the Church organization under recognized rules of church order. When a 'faction' of the church arrogates authority to itself, disrupts the organization and sets at naught well-defined rules of church order, there is no course left for those who desire their rights settled through orderly processes but resort to the courts.

Epperson, 58 So. 2d at 153.

In the instant case, the "well-defined rules of church order,"

were not followed but the "rump faction," as described in Epperson, was allowed to insulate its actions from legal review by the Fifth District's Opinion.

That Opinion conflicts with Epperson and requires this Court's review to ensure a consistent rule of law regarding these important issues.

The Opinion undermines the application of Epperson because it not only closes the only door available to Petitioner as assignee of the minority members to have their grievances redressed, it also fails to apply Flynn v. Estevez, 221 So. 3d 1241 (Fla. 1st DCA 2017) and accept the decision made by the minority members of Northwest. The Opinion focuses on the term "true congregation" and surmises that it would be an ecclesiastical decision who makes up this group that adheres to the faith of the Baptist church.

(Opinion, pp. 8-11).

However, that decision was already made by the minority members, via their affidavits and assignments, and was exactly the type of decision this Court in Epperson made clear for which judicial review must be available.

The precedent established by Epperson is further rooted in U.S. Supreme Court jurisprudence. E.g., Watson v. Jones, 80 U.S. 679 (1871). In Watson, the Supreme Court explained:

The second class of cases which we have described has reference to the case of a church of a strictly congregational or independent organization, governed solely within itself, either by a majority or its members or by such other local organism as it may have instituted for the purpose of ecclesiastical government; and to property held by such a church, either by way of purchase or donation, with no other specific trust attached to it in the hands of the church than that it is for the use of that congregation as a religious society. In such cases where there is a schism which leads to a separation into distinct and conflicting bodies, the rights of such bodies to the use of the property must be determined by the ordinary principles which govern voluntary organizations.

Watson, 80 U.S. at 724-725.

Here, the “ordinary principles”

governing voluntary organizations include Church Bylaws and Roberts Rules of Order, bylaws and rules not followed to the detriment of Petitioner members. (Opinion, pp. 4-5).

Likewise, the Opinion also conflicts with Jones v. Wolf, 443 U.S. 595 (1979). The Jones court held that:

As a means of adjudicating a church property dispute, a State is constitutionally entitled to adopt a 'neutral principles of law' analysis involving consideration of the deeds, state statutes governing the holdings of church property, the local church's charter, and the general church's constitution. The First Amendment does not require States to adopt a rule of compulsory deference to religious authority in resolving church property disputes, even where no issue of doctrinal controversy is involved.

Jones, 443 U.S. at 604-605. The Opinion rests upon its flawed interpretation of the First Amendment and leaves no wiggle room in its application, which is inconsistent with each of these precedents.

The Fifth District was bound by the decisions in Epperson, Watson, and Jones to allow the secular court to be the decision maker regarding ownership of church property. Similarly, the Fifth District was bound by Flynn and failed to accept the minority members as the highest ecclesiastical authority inherent in the decision rendered by the minority members. Because uniformity in access to courts is required, this Court should accept jurisdiction to provide the needed resolution of this legal, not ecclesiastical question.

II.

THE FIFTH DISTRICT'S OPINION DIRECTLY CONFLICTS WITH THE DECISION OF THE SECOND

DISTRICT ON THE ISSUE OF STANDING.

The Opinion of the Fifth District also conflicts with its sister courts regarding the law of standing. Pivotal is the actual language of the Trustee Deed at issue, particularly the "reverter clause"

contained within that document. The Opinion provides that:

Failure of the membership of the church, even if a majority of the membership, to operate a church within these defined parameters "shall constitute such a deviation from the accepted usages, practices and beliefs of Baptists, that said majority shall no longer constitute the true congregation of said church . . . ." In such an occurrence, title to the subject property "shall vest in, and be held for, the use and benefit of the minority" members who continue adherence to the Baptist faith as the deed's clause describes.

The "reverter clause" further provides that if the entire membership of King Street Baptist fails to operate a Baptist church as required, "the title to the abovedescribed property shall revest to and become vested in Brevard Baptist Association, Inc." ….

(Opinion, p. 3).

Thus, for title to become "vested" in BBA, both Trustees and the entire Northwest Baptist Church would have to have not longer been in existence.

The Fifth District's Opinion never discussed the actual language of the Trustee Deed and instead made the blanket determination, without citation, that a transfer in fee simple was the end-all. Then the Fifth District carved out Trustee and misapplied precedent from the Second District, Gen. Dev. Corp. v. Kirk, 251 So. 2d 284 (Fla. 2d DCA 1971), to deny Trustee standing. The Fifth District's decision conflicts with Kirk because taking the Trustee Deed as a whole, which the court was required to do, would result in the determination

that not only did Trustee have a sufficient interest in the outcome of the litigation, it was a necessary party that was bolstered by the affidavits of the Trustee members and assignments of the minority members that the Fifth District acknowledged was in the record before it. 2 (Opinion, p. 4).

It must further be noted that, while both prongs of the Fifth District's Opinion conflict with the decisions of these courts, even determining that one such conflict exists establishes the need for this Court's review, necessary to ensure uniform application of law throughout the state. This is particularly true where issue of the ecclesiastical abstention doctrine must be uniformly applied so that religious organizations will know that its memberships have the same rights under the law regardless of where within Florida their houses It is noteworthy the Opinion is also in direct contradiction to the Fifth District's first appellate ruling in this case, Trustee Corporation of the King Street Baptist Church, Inc. v. Northwest Baptist Church of Cocoa, Inc., Brevard Baptist Association, Inc., and Surfside Community Fellowship, Inc., Case No.: 5D22-209. On appeal was the trial court's dismissal of this lawsuit based upon application of the Ecclesiastical Abstention Doctrine and the issue of standing, the exact same issues the Opinion addresses. The Fifth District reversed an order of dismissal, finding that Petitioner had alleged sufficient facts to establish standing.

In a concurrence, Judge Cohen addressed the application of the Ecclesiastical Abstention Doctrine, not only noting the importance of establishing whether or not Trustee was congregational in its governance, but also the application of neutral principles of law as the case determination,

explaining that “otherwise, the appellant would have no forum in which to adjudicate its alleged grievances.”

of worship may be based. Accordingly, because the Opinion of the Fifth District, raised to this Court on discretionary jurisdictional review, directly and expressly conflicts with decisions of the Fifth District’s sister courts and with the opinions of this Court, this Court should accept jurisdiction and allow briefing on the merits.

CONCLUSION

For the reasons set forth above, this Court should grant jurisdiction to review the Fifth District’s Opinion. That review, which will then have the benefit of the full record, will further demonstrate on the merits the conflict between the Fifth District’s Opinion and the well settled law of this Court and others regarding both standing and the Ecclesiastical Abstention Doctrine.

Respectfully submitted, SHANNIN LAW FIRM, P.A. WIDERMAN MALEK, P.L.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on October 12, 2026, I electronically filed the foregoing with the Clerk of the Florida Supreme Court by utilizing the Florida

Courts E-Filing Portal which will send a notice of electronic filing and a true and correct copy of the foregoing to the following:

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CERTIFICATE OF COMPLIANCE

Pursuant to Fla. R. App. P. 9.045(b) and Fla R. App. P. 9.210(a)(2)(A), I hereby certify that this brief was prepared using proportionately spaced Bookman Old Style 14-point font and complies with the applicable font and word count limit requirements.

Pursuant to Fla. R. Gen. Prac. & Jud. Admin. 2.515(d)(2), I hereby further certify that the legal authorities identified herein exist and are accurately cited for the use and benefit of this Court.

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